



Erskine Bridge Tolls Act 1968

1968 CHAPTER 4

An Act to empower the Secretary of State to levy tolls in respect of the use of a new road which crosses the River Clyde at Erskine and of certain roads provided in connection therewith ; to enable the Secretary of State to provide parking places in connection with those roads and, in relation to those roads, to impose prohibitions, restrictions and other requirements for the purpose of preventing obstruction and for the protection of property and otherwise; and for connected purposes.

[15th February 1968]

Most Gracious Sovereign,

W^E_B, Your Majesty's most dutiful and loyal subjects, the Commons of the United Kingdom in Parliament assembled, towards making an addition to the public revenue, have freely and voluntarily resolved to give and grant unto Your Majesty the tolls hereinafter mentioned; and do therefore most humbly beseech Your Majesty that it may be enacted, and be it enacted by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

Tolls

1.—(1) The Secretary of State shall have power, subject to and in accordance with the following provisions of this Act, to levy tolls in respect of vehicles using the specified roads.

Power to levy tolls for use of specified roads.

(2) In the following provisions of this Act "toll" means a toll leviable under this Act.

(3) In this Act "the specified roads" means—

S.I. 1966
No. 1486.

(a) the roads (including the bridge) whose provision is authorised by the Erskine Bridge Trunk Roads Order 1966 ;

S.I. 1967
No. 1591.

(b) the lengths of trunk roads authorised by the Erskine Bridge Trunk Roads (No. 2) Order 1967 which continue in a southerly direction from the roads mentioned in the foregoing paragraph and in an easterly and westerly direction until the points where they join respectively with the roads whose provision is authorised by the Erskine Bridge (Connecting Roads) Special Roads Scheme 1967 ; and

S.I. 1967
No. 1590.

S.I. 1967
No. 1589.

(c) the length of special road, whose provision is authorised by the Erskine Bridge Special Road Scheme 1967, from its most northerly point to the point where it joins with the roads last mentioned in the last foregoing paragraph ;

and any reference to the specified roads includes a reference to any part thereof.

(4) In this section any reference to an order or scheme includes a reference thereto as varied or amended by any subsequent order or scheme whether made before or after the passing of this Act.

Orders
relating to
tolls.

2.—(1) The Secretary of State may by order make provision as to the classes of vehicles using the specified roads in respect of which the tolls are to be levied, and as to the scales and other provisions in accordance with which they are to be levied.

(2) Any such scales or other provisions may provide for tolls to be levied at different rates by reference to such circumstances or combination of circumstances (whether relating to classes of vehicles, seasons of the year, days of the week, times of day or otherwise) as the Secretary of State may consider appropriate.

(3) Provision may be made by any such order for enabling persons to compound in advance for the payment of tolls, at such rates as may be specified in the order ; and any such provision may include provision for the issue of season tickets or prepaid vouchers to persons so compounding.

(4) An order under this section may provide that vehicles of any description specified in that behalf in the order (notwithstanding that they are vehicles of a class specified in the order in pursuance of subsection (1) of this section) shall be exempted from the payment of tolls.

3.—(1) Where the Secretary of State proposes to make an order under section 2 of this Act, he shall prepare a draft of the order and shall publish in at least one local newspaper circulating in the locality in which the northern end of the specified roads is situated, and in at least one local newspaper circulating in the locality in which the southern end of the specified roads is situated, and in the *Edinburgh Gazette*, a notice—

Procedure for making orders under section 2.

- (a) stating the general effect of the proposed order ;
- (b) naming a place or places in each of those localities where, at all reasonable hours during the period of six weeks from the date of first publication of the notice, a copy of the draft order may be inspected by any person free of charge ; and
- (c) stating that, within the period beginning with the date of first publication of the notice and ending six weeks after the latest date of publication of the notice, any person may by notice in writing to the Secretary of State object to the making of the order.

(2) Not later than the date of first publication of that notice, the Secretary of State shall serve a copy of the notice and of the draft order on each of the county councils.

(3) If, within six weeks from the latest date of publication of the notice, any objection to the proposed order is received by the Secretary of State and the objection is not withdrawn, then—

- (a) if the objection is from either of the county councils, from any other local authority in Scotland or from any such organisation or other body as is mentioned in Schedule 1 to this Act, the Secretary of State shall cause a local inquiry to be held ;
- (b) in the case of any objection not falling within the foregoing paragraph, the Secretary of State may cause a local inquiry to be held if he thinks fit.

(4) After considering any objections to the proposed order which are not withdrawn, and, where a local inquiry is held, the report of the person who held the inquiry, the Secretary of State may make the order either without modification or subject to such modifications as he thinks fit.

(5) As soon as may be after an order under section 2 of this Act has been made, the Secretary of State shall—

- (a) publish, in the manner specified in subsection (1) of this section, a notice stating that the order has been made and naming a place or places in each of the

localities so specified where a copy of the order may be inspected by any person free of charge at all reasonable hours, and

(b) serve a copy of the order on each of the county councils.

1947 c. 43.

(6) The provisions of subsections (2) to (9) of section 355 of the Local Government (Scotland) Act 1947 (which relate to local inquiries) shall have effect with respect to any inquiry held in pursuance of this section.

(7) In this section "the county councils" means the councils of the counties of Dunbarton and Renfrew respectively; "local authority" means any county, town or district council in Scotland; any reference to the date of first publication of a notice is a reference to the date on which it is first published, in accordance with subsection (1) of this section, in a newspaper other than the *Edinburgh Gazette*; and any reference to the latest date of publication of a notice is a reference to the date, or (if more than one) the latest date, on which it is published by the Secretary of State in accordance with that subsection.

General
limitations
on power to
levy tolls.

4.—(1) Subject to the following provisions of this section, the power to levy tolls shall cease to be exercisable at the end of the period of twenty years beginning with the date on which the specified roads become open for use by traffic.

(2) In the exercise of his powers under section 2 of this Act the Secretary of State, so far as practicable, having regard to the utility of specifying scales of tolls in convenient units of currency, shall not specify scales of tolls exceeding those which in his opinion would be requisite to secure that, taking one year with another, the revenue produced by the tolls during the toll period, if applied for the purposes mentioned in Schedule 2 to this Act, would be sufficient, but not more than sufficient, for those purposes.

(3) If at any time during the period specified in subsection (1) of this section (or during that period as extended by a previous order under this section) it appears to the Secretary of State that the aggregate revenue produced by the tolls is likely to fall short of what would be required for the purposes mentioned in that Schedule, the Secretary of State may by order direct that the period shall be extended, or (as the case may be) further extended, by five years.

(4) An order under this section shall be of no effect unless it is approved by a resolution of the Commons House of Parliament.

(5) In Schedule 2 to this Act any reference to interest is a reference to interest at such rate as may be determined to be appropriate in accordance with any directions given in that behalf by the Treasury; and different rates may be so determined in relation to all or any of the following matters, that is to say, different times, different paragraphs of that Schedule, and different expenses referred to in any of those paragraphs.

(6) In this section and in Schedule 2 to this Act "the toll period" means the period specified in subsection (1) of this section, or, if one or more orders under this section have come into operation, means that period as extended by that order or those orders, as the case may be; and in section 9 of and Schedule 2 to this Act "the relevant works" means—

- (a) the specified roads and any space for accommodating vehicles or parking place provided in connection with those roads, and
- (b) any structure, building, works or apparatus on, under or over those roads, spaces or places or used in connection with the regulation of traffic on those roads or in connection with the levying of tolls or with the maintenance of those roads.

5.—(1) Provision may be made by regulations made by the Secretary of State under this section—

Regulations
for securing
payment
of tolls.

- (a) for the designation of one or more places on or near the specified roads at which tolls (other than tolls previously compounded for) are to be paid;
- (b) as to the persons by whom such tolls are to be paid, and the manner in which they are to be paid, whether by paying them to a person authorised to receive them or by placing coins in apparatus provided for the purpose or otherwise;
- (c) for securing that vehicles in respect of which tolls are leviable do not use the specified roads without payment of the tolls.

(2) In relation to vehicles using the specified roads and approaching a place designated in accordance with paragraph (a) of the preceding subsection, regulations made in pursuance of paragraph (c) of that subsection may include provisions for prohibiting or otherwise preventing any such vehicle from further proceeding along the specified roads until any toll leviable in respect of the vehicle has been paid.

(3) Any such regulations may provide that, if tickets or receipts are issued to persons paying tolls, the person in charge of a vehicle in respect of which any such ticket or receipt has been issued shall, at any time when the vehicle is using the

specified roads, produce the ticket or receipt, on being required to do so, for inspection by any person designated by or under the regulations.

(4) Regulations under this section may include such provisions as the Secretary of State may consider appropriate for adapting or modifying the general provisions of the regulations in relation to vehicles in respect of which tolls have been compounded for, including provisions as to the production and surrender of season tickets or prepaid vouchers.

(5) Any regulations made under this section shall provide for a notice, specifying the classes of vehicles in respect of which tolls are leviable, and the scales and other provisions for the time being in force in accordance with which they are leviable, to be displayed at each place designated in accordance with subsection (1)(a) of this section.

Temporary
suspension
or reduction
of tolls.

6.—(1) At any time while an order under section 2 of this Act (in this section referred to as “the principal order”) is in force, the Secretary of State, subject to the following provisions of this section, may make an order providing that, during such period, not exceeding eighteen months, as may be specified in the order under this section, the tolls leviable in accordance with the principal order shall be suspended, or shall be reduced to such extent as may be specified in the order under this section.

(2) An order under this section may provide for suspension or reduction of tolls either generally or by reference to any circumstances, or combination of circumstances, as mentioned in section 2(2) of this Act; and, in so far as the suspension or reduction is in respect of a particular class of vehicles, that class may be a class corresponding with one of those specified in the principal order or not, as the Secretary of State may consider appropriate.

(3) Not less than fourteen days before making an order under this section, the Secretary of State shall give public notice of his intention to do so.

(4) Without prejudice to the preceding provisions of this section, at any time when, by reason of any accident or other emergency, it appears to the Secretary of State to be necessary to do so, he may direct that the tolls shall cease to be leviable—

(a) either during a period specified in the direction or until the direction is revoked by a further direction given by the Secretary of State, and

- (b) either in respect of all vehicles using the specified roads or in respect only of vehicles using them for travelling from north to south, or from south to north, as may be specified in the direction.

(5) Nothing in this section shall affect any power to vary or revoke an order under section 2 of this Act.

Prevention of obstruction and damage

7.—(1) For the purpose of preventing obstruction of the specified roads, the Secretary of State may make regulations under this section— Removal of stationary vehicles.

- (a) prohibiting vehicles from stopping or remaining at rest on those roads except in such circumstances as may be specified in the regulations, and
- (b) making such provision as is mentioned in the following provisions of this section with respect to vehicles which, either in contravention of the regulations or in such circumstances to which subsection (2) of this section applies as may be specified in the regulations, are for the time being at rest on those roads.

(2) The circumstances to which this subsection applies, in relation to any vehicle, are any circumstances in which—

- (a) it is necessary for the vehicle to remain at rest by reason of breakdown, or
- (b) no person is for the time being in charge of the vehicle or the person in charge of it is not present in or on the vehicle.

(3) Regulations made under this section may require the person (if any) in charge of any vehicle which is at rest on the specified roads in circumstances falling within paragraph (a) of the last preceding subsection to take such steps as may be specified in the regulations for reporting that fact and the position and circumstances in which the vehicle is at rest.

(4) Regulations made under this section may prohibit any person, other than a person authorised as mentioned in subsection (5)(a) of this section,—

- (a) from carrying out, or attempting to carry out, any repair or adjustment of any such vehicle as is mentioned in the last preceding subsection except with permission expressly given by a person so authorised, and

- (b) from moving, or attempting to move, any such vehicle from the position in which it is at rest ;

and the regulations may prohibit persons so authorised from carrying out, or attempting to carry out, any repair or adjustment of any such vehicle except in such circumstances as may be specified in the regulations.

(5) Regulations under this section—

- (a) may include provision for empowering any person authorised in that behalf by or under the regulations to remove any such vehicle as is mentioned in subsection (1)(b) of this section from its position on the specified roads either—

- (i) to another position on those roads, or

- (ii) to any space provided by the Secretary of State in the vicinity of those roads for accommodating such vehicles, or

- (iii) with the consent of the person in charge of the vehicle, to the premises of any person operating such a service as is mentioned in section 10 of this Act ;

- (b) in the case of any such vehicle which is so removed, or which at the request of the person in charge of it is repaired or adjusted (instead of being removed) by a person so authorised, may include provision for requiring such person as may be prescribed by the regulations to pay, to the person effecting the removal, repair or adjustment, a charge of an amount to be determined in accordance with such scales and other provisions as may be contained in the regulations ; and

- (c) may prohibit any person from obstructing any action taken by a person authorised as mentioned in paragraph (a) of this subsection for the purpose of removing any such vehicle from, or to another position on, the specified roads.

(6) Different provision may be made under this section in relation to different classes of vehicles and in relation to different circumstances.

(7) Regulations under this section shall be without prejudice to the exercise by police or traffic wardens of any functions in connection with the control and regulation of road traffic or with the enforcement of the law relating to road traffic.

(8) In this section “breakdown”, in relation to a vehicle, includes mechanical defect, lack of fuel, oil or water required for the vehicle, and any other circumstances in which a person

in charge of the vehicle could not immediately, safely, and without damage to the vehicle or its accessories, drive it under its own power along the specified roads to a point beyond those roads.

8.—(1) In relation to the specified roads, the power conferred by section 12(2) of the Road Traffic Regulation Act 1967 (temporary prohibition or restriction of traffic on roads) shall be exercisable either— Special traffic restrictions on specified roads. 1967 c. 76.

(a) as mentioned in that subsection (that is to say, by notice given by the Secretary of State as highway authority), or

(b) by any person authorised in that behalf by the Secretary of State,

and may be exercised in relation to any particular vehicle.

(2) Where that power is exercised in accordance with paragraph (b) of the preceding subsection, it may be exercised either by notice or by such other means as the person exercising the power considers appropriate for communicating the prohibition or restriction to persons affected by it; and subsection (3) of the said section 12 shall apply in relation to any such communication, other than a notice, as it applies in relation to a notice given under subsection (2) of that section.

(3) Section 1(7) of the Road Traffic Regulation Act 1967 (disapplication of that section to special roads) shall not apply in relation to the length of special road comprised in the specified roads.

9. The Secretary of State may by regulations impose such prohibitions and restrictions as he may consider necessary for preventing damage to the relevant works or for preventing notices and signs placed on or near the relevant works in connection with the regulation of traffic or the levying of tolls from being removed, defaced or obscured. Prevention of damage.

Supplementary provisions

10. The Secretary of State may make such arrangements as he may consider appropriate with any person for securing the operation by that person of a service of removing such vehicles as are mentioned in section 7(1)(b) of this Act from, or to another position on, the specified roads, or, if he thinks fit, may himself provide such a service. Provision of removal service.

11. Any person who—

(a) wilfully refuses, or without reasonable excuse neglects or fails, to pay a toll which he is required to pay under this Act, or wilfully avoids payment of any such toll, or

Offences.

- (b) wilfully and with intent to defraud claims or takes the benefit of any exemption from the tolls (whether the exemption in question subsists by virtue of section 2(4) of this Act or otherwise) without being entitled to that benefit, or
- (c) in circumstances not falling within either of the preceding paragraphs, contravenes any regulations made under this Act,

shall be guilty of an offence and liable on summary conviction to a fine not exceeding £20.

Provisions
as to land
and works.
1946 c. 30.
1949 c. 32.

12.—(1) Without prejudice to the generality of any powers conferred by or under the Trunk Roads Act 1946 or the Special Roads Act 1949, the Secretary of State shall have power to provide and maintain—

- (a) such structures, buildings, works and apparatus on or near the specified roads as he may consider necessary or expedient in connection with the levying of tolls or with the maintenance of those roads ;
- (b) such parking places for vehicles as he may consider necessary or expedient in connection with use of the specified roads ;
- (c) if in the opinion of the Secretary of State it is required, a space in the vicinity of the specified roads for accommodating vehicles which have been removed from those roads in pursuance of section 7 of this Act.

1947 c. 42.

(2) For the purpose of the exercise of the powers conferred by the foregoing subsection the Secretary of State may acquire land by agreement or compulsorily, and in relation to the compulsory acquisition of land under this section the Acquisition of Land (Authorisation Procedure) (Scotland) Act 1947 shall apply as if this Act had been in force immediately before the commencement of that Act and as if section 1(1)(b) of that Act included a reference to the Secretary of State.

In this subsection “land” includes any right or interest in or over land.

1963 c. 51.
1949 c. 42.

(3) Where a dispute arises as to the compensation payable in respect of a compulsory purchase under this section it shall be determined by the Lands Tribunal for Scotland in accordance with the Land Compensation (Scotland) Act 1963, but until sections 1 to 3 of the Lands Tribunal Act 1949 come into force as regards Scotland, any such dispute shall be determined by an official arbiter appointed under Part I of the said Act of 1963.

13.—(1) A county council may enter into an agreement with the Secretary of State whereby the council will, as agents of the Secretary of State, perform such services and provide such facilities as may be specified in the agreement in connection with the levying of tolls or the operation of parking places provided under section 12 above; and, if any such agreement is made, the county council may perform those services and provide those facilities accordingly.

(2) A county council may enter into an agreement with the Secretary of State for the operation of such a service as is mentioned in section 10 of this Act; and, if any such agreement is made, the council may operate such a service and provide any facilities required in connection with it.

(3) Any such agreement as is mentioned in either of the preceding subsections may contain such terms and conditions (whether as to payment or otherwise) as the Secretary of State and the county council may consider appropriate.

(4) In this section "county council" means the council of the county of Dunbarton or of the county of Renfrew.

14.—(1) Subject to subsection (3) of this section, the provisions mentioned in the next following subsection shall have effect in relation to—

- (a) vehicles belonging to, or used for the purposes of, a government department, and
- (b) things done, or omitted to be done, in connection with such vehicles by persons in the public service of the Crown,

as they have effect in relation to vehicles which neither belong to nor are used for any purposes of the Crown and to persons who are not in the public service of the Crown.

(2) The provisions referred to in the preceding subsection are—

- (a) section 7 of this Act and any regulations made under that section;
- (b) subsections (1) and (2) of section 8 of this Act; and
- (c) section 11 of this Act in so far as it relates to contravention of any regulations made under section 7 of this Act.

(3) Regulations made under section 7 of this Act may provide that, in their application in relation to—

- (a) vehicles belonging to the Crown and used for naval, military or air force purposes, and
- (b) vehicles used for the purposes of any such body, contingent or detachment of the forces of any country as

1952 c. 67.

1964 c. 5.

is a visiting force for the purposes of any of the provisions of the Visiting Forces Act 1952, or used for the purposes of any headquarters or organisation designated by an Order in Council under section 1 of the International Headquarters and Defence Organisations Act 1964,

the regulations shall have effect subject to such exceptions and modifications as may be specified in the regulations.

(4) Nothing in this Act or in any order made thereunder shall be construed—

- (a) as derogating from any exemption or immunity conferred by any enactment not contained in this Act, or
- (b) as implying that any enactment contained in this Act binds the Crown,

except as provided by the preceding provisions of this section.

(5) In this section “government department” includes any Minister of the Crown.

Orders and
regulations.

15.—(1) Any power conferred by this Act to make an order shall be exercisable by statutory instrument, and shall include power to vary or revoke the order by a subsequent order.

(2) Any instrument containing an order made under section 2 or section 6 of this Act shall be subject to annulment in pursuance of a resolution of either House of Parliament.

(3) Any power to make regulations under this Act shall be exercisable by statutory instrument; and any instrument containing any such regulations shall be subject to annulment in pursuance of a resolution of either House of Parliament.

Financial
provisions.

16.—(1) Any sums paid to any person in respect of tolls shall be taken to be received by that person on behalf of the Secretary of State; and all such sums, and any other receipts of the Secretary of State under this Act, shall be paid into the Exchequer.

(2) Any expenses incurred by the Secretary of State in consequence of the provisions of this Act shall be paid out of moneys provided by Parliament.

Annual
accounts.

17.—(1) The Secretary of State shall, in respect of each financial year during which tolls are levied or are suspended by virtue of an order made under section 6 of this Act, prepare a statement of accounts in such form, and containing such particulars, compiled in such manner, as the Treasury may from

time to time direct having regard to the provisions of section 4 of this Act.

(2) Any statement of accounts prepared under this section shall be sent by the Secretary of State to the Comptroller and Auditor General not later than the end of the month of November following the end of the financial year to which the statement relates ; and the Comptroller and Auditor General shall examine and certify the statement and shall lay copies of it, together with his report thereon, before Parliament.

18.—(1) Unless the context otherwise requires references in this Act to any enactment are references to that enactment as amended or extended by or under any subsequent enactment.

Interpretation
and short
title.

(2) This Act may be cited as the Erskine Bridge Tolls Act 1968.

SCHEDULES

Section 3.

SCHEDULE 1

BODIES TO WHICH SECTION 3(3) APPLIES

1960 c. 16.

1. Any organisation appearing to the Secretary of State to represent to a substantial extent the interests of the general body of owners of mechanically propelled vehicles in Scotland who are not holders of licences under Part III of the Road Traffic Act 1960 or of A licences or B licences under Part IV of that Act.

2. Any organisation appearing to the Secretary of State to represent to a substantial extent the interests of the general body of persons carrying on road transport undertakings in Scotland.

3. In the case of any particular order proposed to be made under section 2 of this Act, any organisation (not falling within either of the preceding paragraphs) which appears to the Secretary of State to represent to a substantial extent the interests of owners in Scotland of a class of vehicles specified, in pursuance of subsection (1) of that section, in the order as prepared in draft.

4. Any organisation appearing to the Secretary of State to represent to a substantial extent the interests of persons engaged in a particular profession, trade or employment who, by reason of that profession, trade or employment, are likely to be frequent users of the specified roads.

5. Any organisation appearing to the Secretary of State to represent to a substantial extent the interests of persons carrying on industrial or commercial undertakings in Scotland generally, or in the locality in which either end of the specified roads is situated in particular, whose vehicles used for the purposes of those undertakings are likely to be frequent users of the specified roads.

6. Any organisation appearing to the Secretary of State to represent to a substantial extent the interests of persons residing in the locality in which either end of the specified roads is situated.

7. Any body corporate appearing to the Secretary of State to have a substantial interest in the use of the specified roads by reason of its operating a number of vehicles which are likely to be frequent users of those roads.

Section 4.

SCHEDULE 2

PURPOSES RELEVANT TO GENERAL LIMITATIONS ON TOLLS

1. Reimbursement with interest of all expenses properly chargeable to capital account which have before the passing of this Act been, or may after the passing of this Act be, incurred by the Secretary of State in providing the relevant works.

2. Reimbursement with interest of all expenses properly chargeable to capital account which may after the passing of this Act, but before

the end of the period specified in subsection (1) of section 4 of this Act, be incurred by the Secretary of State in providing additions to, or improvements of, the relevant works.

SCH. 2.

3. Defraying all expenses (including administrative expenses) which are properly chargeable to revenue account and are incurred during the toll period by the Secretary of State or by any other Minister of the Crown or government department in, or in connection with, the maintenance, repair or renewal of the relevant works, or of any such addition or improvement as is mentioned in paragraph 2 of this Schedule, or the operation during the toll period of services or facilities provided by the Secretary of State in connection with the relevant works or any such addition or improvement.

4. Making such provision as in the opinion of the Secretary of State is adequate for defraying the expenses properly chargeable to revenue account which are likely to be incurred in, or in connection with, continuing after the end of the toll period to maintain, repair and renew the relevant works and any such addition or improvement and continuing after the end of that period to operate services or facilities provided by the Secretary of State in connection with the relevant works or any such addition or improvement.

5. Making such provision as in the opinion of the Secretary of State is equivalent to that which would be required for keeping the relevant works and any such addition or improvement insured (both during and after the toll period) if they were owned and maintained by a commercial undertaking.

6. Defraying all expenses (not falling within any of the preceding paragraphs) which are incurred by the Secretary of State in consequence of the provisions of this Act.

7. Provision for interest on any deficiency which may arise during the toll period in the revenue produced by the tolls as compared with the amounts required to be raised by the tolls for fulfilling the purposes specified in paragraphs 1 to 6 of this Schedule.